

Landlord Services Agreement Residential Lettings, Property Management & Sourcing

About US

Pevona Ltd is a proudly independent, family-owned estate agency based in London, founded in 2009. With our registered office at Flat 14, Burgundy House, 25 Liberty Bridge Road, London E20 1AQ (Company No. 06910226), we bring over two decades of industry experience and a unique perspective shaped by our roots in the construction sector. Our foundation is built on trust, local knowledge, and personalised service. We work with both private landlords and public sector clients, delivering tailored property solutions that consistently exceed expectations. Our core operations are located in London, yet our reach and reputation extend across surrounding boroughs and communities. Our team reflects the diversity of the city we serve —multilingual, highly skilled, and passionate professionals who provide expert guidance across residential lettings, property management, and estate agency services. At Pevona Ltd, we do not see our clients as transactions —we see them as partners in their property journey. Every landlord, tenant, and investor we serve becomes part of our extended Pevona family. We take pride in fostering long-term relationships grounded in transparency, responsiveness, and results.

How We Can Help

Property Management Solutions

At Pevona Ltd, we provide a comprehensive residential lettings and property management service, tailored to meet the evolving needs of both landlords and tenants. Our process begins with a free, no-obligation consultation designed to help you navigate the letting journey with clarity and confidence. Whether you are letting your first property or seeking expert investment guidance, we offer professional advice to outline key requirements, identify potential risks, and assess each property's suitability for your objectives.

Our lettings team regularly handles enquiries from prospective tenants, corporate clients, and other stakeholders, carefully matching them to available listings. To maximise exposure, we market properties across leading digital portals, local press, and targeted platforms.

Bespoke Management with Real Results

What sets us apart is our commitment to bespoke solutions that extend beyond conventional management.

These include:

- ◆ Customised marketing strategies to attract ideal tenants.
- ◆ Rigorous tenant screening and referencing procedures.
- ◆ Personalised maintenance schedules to support tenant satisfaction and property longevity.

This proactive and client-centred approach helps to increase rental yield, enhance tenant retention, and protect long-term asset value. By delivering services shaped around individual needs, Pevona Ltd ensures a more effective and rewarding property management experience.

As residential letting and managing agents, Pevona Ltd **Offers A Full Range Of Property sales and letting services, including, Free, No-Obligation Consultation And Advice** , and Regular Engagement with landlords, companies, private tenants, corporate clients, and local authorities.

We deliver property sourcing solutions through real -time collaboration with key stakeholders.

Our dedication to excellence guarantees an exceptional experience for both landlords and tenants.

AGENCY AGREEMENT

Between **PEVONA LTD**. Company Reg No: 6910226, Address: Flat 14, Burgundy House, 25 Liberty Bridge Road, London, E20 1AQ.

and **LANDLORD'S NAME/S (all joint landlords):**

Forenames	Middle Names	Surnames

LANDLORD'S ADDRESSES - (Current address and new address if applicable):

Address Line 1	
Address Line 2	
City	

Postcode	
Email Address	
Tel/Mobile	

Limited Company (LANDLORD'S) ADDRESSES - (Registered name and address if applicable):

Company's Registered Name & Number	
Address Line	
City	
Postcode	
Company Contact: Email Address	
Company Contact: Tel/Mobile	

ADDRESS OF PROPERTY TO LET:

Address Line 1	
Address Line 2	
City	
Postcode	

Email Address	
Tel/Mobile	

This agreement forms the agreement between The Agent, and the Landlord specified above. It sets out in conjunction with the Agent's information, the level of service required and selected by the Landlord and is reliant upon the information given to The Agent by the Landlord:

Definitions:

For the purposes of this Agreement, the following terms shall have the meanings set out below:

General Terms

- **"The Landlord"**: The person(s) or entity named in this Agreement as the owner or authorised representative of the Property.
- **"The Agent"**: Pevona Ltd, appointed under this Agreement to provide services to the Landlord.
- **"The Tenant"**: The individual(s) or entity named in the tenancy agreement as occupying the Property.
- **"The Property"**: The residential premises specified in this Agreement, including any outbuildings, gardens, and fixtures.

Service Levels A - Lettings & Management Services

- **Tenant Introduction Only Service:** A fixed-fee service where the Agent introduces a prospective tenant to the Landlord, who then manages all subsequent tenancy arrangements.
- **Tenant Find Only Service:** A service where the Agent markets the Property, conducts viewings, references tenants, and prepares tenancy documentation, but does not provide ongoing management.
- **Letting and Rent Collection Service:** A service where the Agent manages the letting process and collects rent on behalf of the Landlord.
- **Full Management Service:** A comprehensive service where the Agent manages all aspects of the tenancy, including rent collection, property maintenance, inspections, and compliance.

Service Levels B - Sourcing (Pre-Purchase) Services

Property Sourcing

- **Tailored Property Sourcing:** A bespoke pre-purchase service involving property search, negotiation, and due diligence aligned with the Landlord's investment objectives. This service may result in Introduced Properties. Introducer Protection applies to any Introduced Property purchased within 12 months of termination of the sourcing instruction. See Clause 4.13 and 5.1A for details
- Any property details, address, or opportunity disclosed by Pevona Ltd during a Tailored Property Sourcing instruction, whether on-market or off-market. This term applies exclusively to sourcing services and is subject to Introducer Protection clauses.
- **Retainer Fee:** An upfront payment securing the Agent's services for property sourcing, deductible from the final sourcing fee.

Additional Services

- **Tenant Check-In Service:** The process of meeting the tenant at the start of the tenancy, verifying the inventory, recording meter readings, and handing over keys.
 - **Tenant Check-Out Service:** The process of inspecting the Property at the end of the tenancy, comparing its condition to the inventory, and recording any discrepancies.
 - **Inventory Inspection Plus Report:** A detailed record of the Property's condition, including photographs and descriptions of fixtures, fittings, and furnishings, prepared at check-in or check-out.
 - **Periodic Compliance Visit:** An interim inspection during the tenancy to assess property condition and compliance with tenancy obligations, accompanied by a standard photographic report.
 - **Empty Property Inspection:** A scheduled visit to a vacant Property to check security, maintenance, and compliance.
 - **Tenancy Agreement Fee:** The cost of preparing and issuing a legally compliant tenancy agreement.
 - **Duplicate Account Statement:** An additional copy of the Landlord's financial statement for a specified period.
 - **Tenancy Renewal Service:** The process of negotiating and preparing documentation for extending an existing tenancy.
 - **Insurance Claim Assistance:** Support provided by the Agent in liaising with insurers or loss adjusters regarding property-related claims.
 - **Section 20 Major Works Consultation:** Advisory and administrative services related to statutory consultation for major works under the Landlord and Tenant Act 1985.
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The following are applicable to all tenancies regardless of which deposit scheme is used:

1. Service levels

1.0: Tailored Property Sourcing (Pre-Purchase) Service

- ◆ Scope: Bespoke property search aligned to client's investment objectives, budget, and preferred locations.
- ◆ Includes:
 - Market research & shortlisting (on/off market).
 - Negotiation support with sellers/agents.
 - Coordination with solicitors, surveyors, mortgage brokers.
 - Pre-purchase due diligence (title red-flags, comparables, indicative yields).
 - Interim property inspections for risk management.
- ◆ Excludes: Regulated financial/tax advice (client must seek independent advice).
- ◆ Client obligations: Provide accurate criteria, proof of funds, Anti-Money Laundering (AML) documents.

Introducer Protection applies to any Introduced Property purchased within 12 months of termination of the sourcing instruction.

1.1: Our Tenant Introduction Only Service

- ◆ The Agent will arrange to provide a guide on the rental price of the Property, usually by visiting.
- ◆ The Agent will promote the Property in appropriate ways to find a suitable tenant for the Property.

- ◆ For Tenant Introduction Only Service for landlords or Other Agents, once contact is made by a prospective tenant, "The Agent" will put the prospective tenant in contact with the Landlord who will then arrange all viewings and tenancy paperwork. The Landlord will need to comply with the deposit legislation and both the Immigration Act 2014 and the Immigration (Hotel Records) Order 1972 requirement as appropriate. This element does not apply to the following levels of service.
- ◆ Additional services are available for a fee.

1.2: Our Tenant Find Only Service

In addition to the Tenant Introduction Only Service items:

- ◆ The Agent will arrange for the legally required checking and paperwork for the Property. This may include a gas safety record, an energy performance certificate, mains electrical testing, portable appliance testing, an asbestos risk assessment (where applicable) and a legionella risk assessment. All costs will be borne by the Landlord, even if the Property is not actually let through the Agent.
- ◆ The Agent will arrange viewings with prospective tenants either using the keys supplied by the Landlord or in co-ordination with the current occupier. All viewings will be accompanied by The Agent unless agreed otherwise.
- ◆ Once a prospective tenant is found who is interested in the Property, they will be asked to complete an application form giving information about themselves.
- ◆ The Agent will then take references appropriate to the circumstances of the prospective tenant. This may be done by The Agent may be outsourced to a referencing company as The Agent thinks fit.
- ◆ The Agent agrees under Part 3 Chapter 1 of the Immigration Act 2014 and the Immigration (Hotel Records) Order 1972 to be the person responsible for checking the immigration status of all applicants, as appropriate, before the initial move in. For Tenant Find Only landlords the Landlord will be responsible for any further work needed under the Immigration Act 2014 and the Immigration (Hotel Records) Order 1972.

- ◆ On receipt of references The Agent will set up the necessary paperwork to let the property on an appropriate tenancy or licence.
- ◆ The Agent will, if appropriate, arrange for the initial production and subsequent agreement of an inventory and schedule of condition of the property at the move in.
- ◆ The Agent will sign up the Tenant and collect any money due, giving the Tenant copies of appropriate paperwork.
- ◆ If a deposit has been collected and requires protection under the Housing Act 2004 rules, then you will either need to have a custodial scheme account of your own for us to transfer the deposit money into or you will have to purchase protection with an insured scheme, and we will only send you the deposit once you have sent evidence of that protection. If we do not get evidence within 10 days, we will protect the deposit in the custodial scheme to protect you. We will not, however, have any involvement in the agreement about the refund of the deposit or any disputes at the end of the tenancy.
- ◆ For Tenant Find Only Service landlords, The Agent will then send the Landlord the funds, less expenses, and the paperwork. This element does not apply to the following levels of service:

1.3: Our Letting and Rent Collection & Letting without Rent Collection Service

In addition to the Tenant Find Only Service items:

- ◆ The Agent will always use its best endeavours to collect rents or others charges due from the Tenant and provide monthly accounts to the Landlord. However, The Agent will not be liable for any arrears nor for any legal or other costs incurred by The Agent or the Landlord or any other party in respect of the recovery of such arrears.
- ◆ The Agent agrees that for the Letting and Rent Collection & Letting without Rent Collection Service the Agent will accept responsibility for the ongoing Immigration Act and the Immigration (Hotel Records) Order 1972 checks that may be needed during the Term of the tenancy.

- ◆ If the Landlord lives overseas, The Agent must account to HM Revenue and Customs for the rental received and this can include deducting basic rate income tax. To avoid this, the Landlord must apply to HM Revenue and Customs for approval for gross rents to be paid. If such approval is not obtained, an extra 1% including VAT will be charged on the normal commission to cover the cost of the extra work involved.

1.4: Full Management Service

In addition to the Letting and Rent Collection & Letting without Rent Collection Service items:

- ◆ The Agent will use its best endeavours to arrange minor repairs, general maintenance, and replacements to the property without necessarily consulting the Landlord beforehand or up to the value of one month's rent. The Agent will not be responsible for damage or loss incurred to the Property or the Landlord in the event of repairs, general maintenance or replacements not being carried out.
- ◆ The Agent will use its best endeavours to make "**Compliance**" Periodic (Interim) visits to the property and send a report to the Landlord, but such visits and reports (**Standard Picture Led Report**) can only be regarded as general oversight of the Property and its care by the Tenant. The Agent does not accept responsibility for any actual variance between the report and the items reported upon. The Agent will liaise with the Tenant on all day-to-day matters arising.
- ◆ The Agent will use its best endeavours to recover possession of the Property in accordance with instructions received but cannot be liable for any delays, damages or costs incurred because such vacant possession is not achieved within the timescale requested. It will be the responsibility of the Landlord to instruct solicitors with whom The Agent will liaise. The Agent will not be liable for any legal or other costs incurred in any action against current or previous tenants undertaken on the Landlord's instructions.
- ◆ Deposit protection ordinarily forms part of full management services unless excluded in writing. Where excluded, The Agent, in good faith and with best endeavors, support the landlord in serving tenant notices and maintaining compliance, provided relevant deposit documentation is supplied to the Agent.

1.4a: Rent Collection Exclusion

- ◆ Where the landlord retains responsibility for collecting rent under a full management agreement, The Agent shall not be held liable for the recovery of arrears, financial reporting, or payment of costs from rent held by the landlord.
- ◆ Notwithstanding the exclusion of rent collection duties, The Agent shall use its **best endeavors** to support the landlord in addressing tenant communications, escalating payment concerns, and initiating possession procedures where appropriate.
- ◆ The landlord remains solely responsible for enforcing rent obligations and funding any management expenditure that would ordinarily derive from rental income.

1.5 All levels of service

- ◆ The Landlord will be responsible for the arrangement and valid continuance of adequate buildings and contents insurance on the Property unless specifically agreed otherwise in writing with the Agent. Furthermore, the Landlord will in particular, inform The Agent in writing of any action that needs to be taken to ensure continuance of insurance either for renewal or because the Property is vacant.
- ◆ The Agent should be informed immediately of any substantial change affecting the Property and/or the Agent's management of it. The Landlord accepts that The Agent can best carry out their management function if they are aware of possible problems arising.
- ◆ The Landlord agrees to indemnify The Agent(not hold The Agent liable) for all costs incurred or as may be awarded by a court in connection with the management of the Property including the cost of complying with any existing or future legislation affecting the letting of the Property and the cost of repairing and removing and replacing any dangerous and/or defective equipment and/or furnishings with safe and compliant equipment and/or furnishings.
- ◆ If The Agent feels it will provide better service, The Agent can arrange to instruct other agents to assist in the marketing of the Property. This will be at no additional cost to the Landlord unless specifically agreed and confirmed in writing.

1.6: Cost Approval Threshold

The Agent agrees not to **INCUR ANY EXPENDITURE ON REPAIRS, MAINTENANCE, OR REPLACEMENTS** exceeding **£250 (exclusive of VAT)** per item or service without obtaining the Landlord's prior written consent, except in cases of emergency where immediate action is required to prevent further damage or risk to the property or occupants.

1.7: Prior Agreement for Works

The Landlord and Agent agree that **ANY NON-EMERGENCY WORKS OR SERVICES EXCEEDING** the agreed threshold of **£250** must be pre-approved in writing by the Landlord. The Agent shall provide a written estimate and await confirmation before proceeding, unless otherwise agreed in writing.

2. The Landlord agrees and confirms:

2.1: That the Landlord is **THE LEGAL OWNER OF THE PROPERTY OR THAT THE LANDLORD IS AUTHORISED** by the owner to enter into this agreement and is entitled to receive rental income.

2.2: That The Agent is **APPOINTED AS AGENT FOR THE LANDLORD OF THE PROPERTY**.

2.3: That the Landlord gives **THE AGENT AUTHORITY TO ACT ON THE LANDLORD'S BEHALF** and to do anything which the Landlord could do and that the Landlord will approve of everything done by The Agent in good faith except for negligent acts, omissions, or breach of contract.

2.4: The Landlord will compensate and reimburse The Agent for reasonable costs and expenses, claims and liabilities incurred under this agreement, provided such costs do not arise from the Agent's negligence, breach of contract, or failure to comply with statutory obligations.

2.5: That the Property is fit to be let, compliant with all statutory requirements, safe to be let and all appliances and goods are in full working order, serviced and have safety instructions for use.

2.5a - HMO Licensing Obligations & Agent Support: Where the Property falls within the definition of a House in Multiple Occupation (HMO) under the Housing Act 2004 and any subsequent legislation, the Landlord confirms that the Property is duly licensed by the appropriate local authority and accepts full responsibility for ongoing compliance with the licence conditions.

These conditions include, but are not limited to:

- Maximum permitted occupancy
- Health and safety regulations
- Amenity standards
- Fit-and-proper-person requirements

The Agent shall use its **best endeavours** to support the Landlord in fulfilling these obligations. This includes:

- Promptly notifying the Landlord of changes to HMO licensing rules or renewal deadlines
- Advising on documentation and inspection protocols relevant to enforcement
- Coordinating necessary assessments or remedial works upon instruction

Unless otherwise agreed in writing, ultimate legal liability remains with the Landlord, who must ensure that all conditions are continuously met and documented to avoid enforcement action, penalty, or tenant claim.

2.6: That the Property will be clean prior to letting and any garden will be neat and tidy for the season.

2.7: That the Property and contents (if applicable) are adequately insured and that the insurance company is aware of, and consents to, the letting of the Property.

2.8: That where the Property is subject to a mortgage, the Landlord has consent to let the Property and that the Landlord will supply a written copy of the consent to The Agent prior to letting.

2.9: That if the Property is leasehold, the Landlord will obtain any necessary consent from the freeholder and/or the property management company for letting and supply The Agent with a copy of the lease and the lessor's consent prior to the letting.

2.10: That The Agent or any of the employees of The Agent may sign the tenancy agreement, notices, and any relevant documentation for and on behalf of the Landlord.

2.11: That the property will be supplied with a minimum of one working smoke alarm per floor and a carbon monoxide alarm in every room with a solid fuel burning appliance, and if this is not present, The Agent can arrange for the fitting of appropriate alarms at the Landlord's expense. Some properties may need more than simple smoke alarms.

2.12: That the Landlord(s) confirm that they are not subject to a Banning Order and have not been entered onto the database established by the Housing and Planning Act 2016.

3. The Agent:

3.1: Will not, as part of the regular management of the Property, be responsible for the supervision or management of any major building work or refurbishment of the Property, unless agreed between the Landlord and The Agent in writing prior to the commencement of the project and upon terms to be agreed.

3.2: Is not liable for any loss or damage arising from the defective work, substandard repair or any other default by a contractor engaged by the Agent, unless there has been any negligent act by The Agent in relation to the selection or management of the contractor or the repair work.

3.3: Is not responsible for redirecting the Landlord's post delivered to the Property.

3.4: Is not responsible to manage the Property when it is not let.

3.5: May delegate any of the services to be provided to the Landlord, such as inventory taking or referencing of prospective tenants, where it does not adversely prejudice the Landlord by doing so.

3.6: Is not responsible for any latent (hidden) defect in the Property.

3.7: Will not be liable for any loss or damage suffered by the Landlord via the act, negligence, and omission of any third party which may arise, otherwise than through the negligence of the Agent.

3.8: Will not attend court or any tribunal in relation to the Property as part of the regular management of the Property unless agreed between the Landlord and The Agent beforehand or unless as a matter of law The Agent is required to attend. Prices for such work are in the Scale of Charges.

3.9: Will notify the Landlord of any notices The Agent receives in relation to the Property.

3.10: May, at their discretion, prepare and serve legal notices required relating to the letting, subject to the level of service requested.

3.11: The Agent will arrange for Annual or Periodic (which ever applies) testing of electrical appliances to ensure compliance with the Consumer Protection Act 1987 and to fulfil a duty of care to the Tenant. The Landlord agrees to refund the cost of such testing.

4. Financial matters:

4.1: The Landlord will indemnify The Agent for claims, damages, or liabilities reasonably incurred while acting on the Landlord's behalf, excluding any arising from the Agent's negligence, breach of contract, or statutory non-compliance.

4.2: The Landlord agrees to pay the Agent the fees, commissions, and expenses applicable to the service level selected by the Landlord, as detailed in the attached Scale of Charges. For scenarios where this Agreement is cancelled by the Landlord, either prior to tenancy commencement or during the tenancy term, reference should be made to Clause 5.1 and Clause 5.2, which outline applicable cancellation terms and minimum fees payable.

4.3: The Agent will pay for repairs out of rent money held and where the monies held are insufficient to cover the cost of a repair the Landlord will pay The Agent any shortfall upon demand.

Introducer Protection applies to Introduced Properties disclosed during Tailored Property Sourcing

4.4: The Agent will negotiate the level of rent to be charged in consultation with the Landlord and may review the rent from time to time as the tenancy agreement, law, and rental market permits.

4.5: The Agent shall be entitled to retain interest earned on any money held on the Landlord's behalf and any commission or referral fees from but not limited to insurance companies, referencing companies, utility companies, contractors and any fees charged to tenants earned while acting on the Landlord's behalf in accordance with the Scale of Charges below. Details of such income received by The Agent can be provided to the Landlord on request.

4.6: The Landlord and The Agent will comply with all requirements of HM Revenue and Customs.

4.7: The Agent will, if required, supply duplicate rental statements and annual statements and the Landlord will pay the additional cost as set out on the Scale of Charges.

4.8: Where the Tenant is in receipt of benefits, the Landlord will reimburse The Agent for any legally required refund of benefits, provided such refund does not result from the Agent's error, negligence, or breach of statutory duties.

4.9: Where there is a claim on the Landlord's insurance, The Agent will, as far as the law permits, assist with the claim where necessary and the Landlord will pay the Agent's fees for this service in accordance with the Scale of Charges.

4.10: The Landlord will reimburse The Agent for reasonable and necessary costs incurred to maintain legal compliance of the Property, excluding costs arising from the Agent's negligence, breach of contract, or failure to act within statutory requirements.

4.11: If a holding deposit, as permitted by the Tenant Fees Act 2019, is held by The Agent, in circumstances detailed in Schedule 2 of the Act, the holding deposit may be retained. These funds will firstly be used to reimburse the Agent's costs and expenses and then any surplus will be applied to lost rent.

4.12: The tenancy deposit will be processed in accordance with the requirements of the Housing Act 2004 and deposit protection.

4.12a Deposit Protection Exclusion Clause: If the landlord elects to retain responsibility for protecting the tenancy deposit, The Agent shall not be held liable for breaches of the Housing Act 2004, non-service of prescribed information, or any legal consequences related to deposit handling. The Agent shall, where practical and upon request, use **best endeavors** to advise the landlord on deposit protection requirements and issue formal tenant correspondence confirming deposit holder details. The landlord shall provide The Agent with timely evidence of deposit protection and prescribed information served, to enable proper tenancy administration and legal compliance.

4.12.1: The Agent will choose a suitable scheme and comply with the initial requirements of that scheme.

4.12.2: If the deposit is to be held by The Agent it will be held in the Agent's client account until the Tenant has vacated and the move out inspection is concluded.

4.12.3: Deposit monies shall be paid out upon agreement between the Landlord and the Tenant, the decision of an adjudicator or an order of the court.

4.12.4: The Agent will try and assist in resolving any dispute.

4.12.5: During a dispute the liability to pay for cleaning, repairs etc. will remain with the landlord. Any award made to the landlord post; adjudication will be paid over once received.

4.12.6: If the deposit is required to be protected by the Housing Act 2004 then The Agent will have to pay the deposit into the scheme once a formal dispute is raised with the scheme.

4.12.7: If the deposit is not required to be protected under the Housing Act 2004 then The Agent will retain the deposit during negotiations on the refund pending agreement or a court order.

4.12.8: For avoidance of doubt The Agent will hold the deposit as Stakeholder and will be entitled to retain any interest earned on the deposit.

4.13: Sourcing Fees and Payment Terms

- ◆ Option A - Fixed Fee: £3,995 + VAT payable on exchange or completion.
- ◆ Option B - Percentage Fee: 1.5% of purchase price (minimum £3,950 + VAT).
- ◆ Retainer: £750 upfront, deductible from final fee.

- ◆ Introducer Protection: If client buys an introduced property within 12 months of termination, full sourcing fee applies.
- ◆ Interim inspections: £250 per property (or as quoted).
- ◆ All fees exclude third-party costs (legal, survey, finance).

4.14: The Landlord will repay any overpaid rent paid following the expiry of a section 21 notice served by the Landlord which does not expire at the end of a rent period in accordance with Section 40 of the Deregulation Act 2015.

5. Notices

5.1A: Cancellation – Tailored Property Sourcing

- ◆ 14-day cooling-off under CCR 2013 applies.
- ◆ If service starts within cooling-off, proportionate charges apply for work done.
- ◆ After cooling-off: 30 days' written notice; retainer + documented costs apply.

Introducer Protection remains enforceable for any Introduced Property disclosed during the sourcing instruction.

5.1: If the Landlord wishes to cancel this agreement before a tenancy has commenced, the Landlord may do so by writing to The Agent the Agent's address. If the Landlord wishes to cancel within 14 days of the signing of this agreement, then they may cancel by completing the form found at the end of Appendix B below.

5.1.1: If The Agent has committed expenditure or undertaken work, the Landlord agrees to reimburse The Agent with those costs and expenses.

5.1.2: If a ready, willing, and able tenant has been found, the Landlord will reimburse The Agent for actual and reasonable costs incurred, including marketing, referencing, and compliance checks. Any cancellation fee must reflect work completed and shall not exceed the Tenant Find Only Service fee.

5.2: If the Landlord wishes to cancel this agreement during a tenancy (Rent Collection and Full Management only), the Landlord may do so by writing to The Agent giving a minimum of one month's notice to allow for the orderly handover of the Property.

5.2.1: Please note The Agent will not be able to transfer the deposit without the written agreement of the Landlord and the Tenant.

5.2.2: Where the Landlord cancels this Agreement during an active tenancy, the Landlord will pay a proportionate fee based on services delivered to date, including reasonable costs for management time and disbursements. Cancellation charges must be fair, transparent, and reflect actual work completed.

5.3: If The Agent wishes to end this agreement at any stage, The Agent will write to the Landlord giving a minimum of one month's notice to allow the Landlord to appoint another agent.

5.4: Notice can be posted first class, recorded delivery, or hand delivered to the Agent's office for notices to The Agent or the last known address of the Landlord for notices to the Landlord.

6. Various

6.1: Any variation to this agreement must be agreed in writing between the parties. At least one month's notification will be provided.

6.2: The Contracts (Rights of Third Parties) Act 1999 will not apply to this agreement.

6.3: This agreement will form the basis for The Agent managing any other properties for the Landlord at whichever level of service the Landlord chooses for each property.

6.4: This agreement will continue until ended in accordance with clause 5.

6.5: Compliance - Property Sourcing

- Pevona complies with Estate Agents Act 1979, AML - Anti Money Laundering /CTF-Counter-Terrorist Financing (HMRC registration), GDPR/ICO, Redress Scheme, CMP, and PI insurance.
 - Copies of our policies/certificates are available upon request or available online our website: www.pevonald.co.uk/policies
- No regulated financial advice provided; client must seek FCA-authorized advice.

7. Data Protection

7.1: Pevona Ltd is a data controller and is required to pay a fee to the Information Commissioner's Office (ICO) and the details will be placed on the register.

7.2: Pevona Ltd will process the Landlord's personal data in accordance with the Privacy Notice provided by the Agent.

Copies of our policies/certificates are available upon request or available online our website: www.pevonaltld.co.uk/polocies

7.3: The Landlord will also be a controller in respect of tenant and other personal data and should be registered with the ICO and process all data in accordance with the General Data Protection Regulations.

8. Redress and Client Money Protection

8.1: Letting Agents are required to be a member of a redress scheme. We belong to the following property redress scheme [Property Redress Scheme], and you can seek redress by writing to the scheme at:

Address:

Premier House 1st Floor
Elstree Way, Borehamwood
WD6 1JH

Telephone no: 0333 321 9418, Email: info@theprs.co.uk, Website: www.theprs.co.uk

8.2: Before a complaint can be escalated to the redress scheme, clients are initially required to go through our complaint's procedure, a copy of which is available upon request.

8.3 From 1 April 2019 letting agents are required to have Client Money Protection. Our provider is UKALA, in partnership with Let Alliance **UKALA TOTAL LOSS**, and their website is: <https://www.ukala.org.uk/membership-services/client-money-protection/>.

OUR CMP HANDLING PROCEDURE AND CERTIFICATE CAN BE OBTAINED HERE:

Copies of our policies/certificates are available upon request or available online our website:
www.pevonalttd.co.uk/policies

If you wish to instruct us, we can only proceed upon receipt of this agreement duly signed and the information requested in this Pack

THE LANDLORD AGREES AND ACCEPTS THIS AGENCY AGREEMENT AND INSTRUCTS THE AGENT TO UNDERTAKE THE LEVEL OF SERVICE INDICATED BELOW AT THE RATE IN THE PREVAILING SCALE OF CHARGES.

Property Sourcing (Pre-Purchase)	Tenant Introduction Only	Tenant Find Only	Letting and Rent Collection	Letting without Rent Collection	Full Management Service
☐	☐	☐	☐	☐	☐

Please tick the box where applicable. If there is no box to tick, please speak to us if you would like our help with the item.

	YES	NO
Have you notified the insurer of the Property that it is to be let?	☐	☐
Are you the legal owner of the Property, or have authority to be letting the Property?	☐	☐
Have you instructed other agents to market the property? (If so, you agree to let us know if you find another tenant through another source).	☐	☐
Do you have permission from any mortgage lender (please provide a copy of that permission to the Agent)?	☐	☐
Are all soft furnishings at the Property compliant with the current fire safety regulations and has all non-compliant furniture has been removed from all parts of the Property?	☐	☐
Do you require details of the Rent Guarantee and Landlord's Legal Expenses Insurance?	☐	☐

SCALE OF CHARGES

VAT is payable (when applicable) at the prevailing rate on all our fees. In accordance with consumer legislation, it is quoted as included in the prices stated below. If the VAT rate changes the price charged will change accordingly.

An amount payable under a percentage fee will go up or down depending on the agreed rent level.

SCALE OF CHARGES - FIXED FEES

Our fixed fees remain consistent regardless of rent level. These fees apply unless waived under Full Management Service.

1) **Tenant Introduction Only Service** ----- £1000 payable for each letting where the tenant is introduced through the Agent.

2) **Our Tenant Find Only Service** formerly referred to as 'Let Only' ----- 6 weeks rent payable for each letting where the tenant is introduced through the Agent.

*If the monthly rental is £1500 you will pay a fee of £1726

3) **Letting with or without Rent Collection Service** ----- 13% of the rent received, deducted by The Agent

*If the monthly rental is £1500pm you will pay a fee of £195 per month

4) **Full Management Service** ----- 15% of the rent received, deducted by the Agent

*If the monthly rental is £1500 you will pay a fee of £225pm.

5) **Property Sourcing (Pre-Purchase) Service** ----- Tailored Sourcing - Fixed: £3,995 incl. VAT.

Additional Fixed Fees

1. Tenant Check-In Service: £150 incl. VAT (waived under Full Management Service).
2. Tenant Check-Out Service: £150 incl. VAT (waived under Full Management Service).
3. Tenancy Agreement Fee: £250 incl. VAT (waived under Full Management Service).
4. Duplicate Account Statements: £25 incl. VAT (waived under Full Management Service).

The fees under the above services are payable when any individual or organisation enters into an agreement to rent the Property or as a result of our promotion, introduction, or viewing by the agent.

** Only required where the fee is to be a percentage of the rent.*

SCALE OF CHARGES - OTHER EXPENSES

- ♦ **Professional Hourly Rate:** £150 per hour (as quoted), additional services beyond agreed scope.
- ♦ **Property Sourcing (Pre-Purchase) Service:**
 - Tailored Sourcing - 1-1.5% of purchase price (minimum £3,950 incl. VAT).
 - Tailored Sourcing - **Retainer:** £750 incl. VAT (discounts may apply when combined with Full Management Services). Final costs confirmed by quotation.

Fees apply to any Introduced Property purchased within 12 months of termination of the sourcing instruction.

- ♦ **Vetting and Referencing Checks:**
 - **Tenant Referencing:** £35 incl. VAT per applicant. (subject to quotation)
 - **Guarantor Referencing:** £35 incl. VAT per guarantor. (subject to quotation)
 - **New Landlord Referencing:** £100 incl. VAT. (subject to quotation)
- ♦ **Inventory Inspection & Reporting Services:**
 - **Periodic Compliance Visit with Report:** £250 incl. VAT (waived under Full Management Service).
 - **Empty Property Inspection with Report:** £100-£350 incl. VAT (depending on property size and detail)
 - **Inventory Inspection & Report:** £100-£350 incl. VAT (depending on property size and detail)
- ♦ **Tenancy Renewal Services:**
 - **Existing Landlords:** Equivalent to six weeks' rent (waived under Full Management Service).
 - **Stand-Alone Renewal Service:** £150 per hour incl. VAT (subject to quotation)
- ♦ **Duplicate Account Statements:** £25 incl. VAT (Free (Waived) with Full Management Services), confirmed by quotation.

- ♦ **Insurance Claims Assistance:** £150 per hour incl. VAT for liaison with loss adjusters: (Free (Waived) with Full Management Services).
- ♦ **Section 20 Major works management:** £150 per hour incl. VAT for liaison with loss adjusters (Free (Waived) under Full Management Service).

In the event of cancellation during a tenancy the minimum fee that would be payable is the agreed Tenant Find Only fee listed above, plus other costs incurred, including a reasonable fee for the time management which has been provided, regardless of the service level selected. This fee is payable in full, in addition to any disbursements or management time costs itemised within this agreement, or other works.

****Tenant Fees Act 2019: No Prohibited Fees Will Be Charged To Tenants****

Please note: Under the Tenant Fees Act 2019, most fees are prohibited for tenants of assured shorthold tenancies, student accommodation, and licenses to occupy. Only permitted payments—such as rent, refundable deposits, and certain default charges—may apply. For other tenancy types, fees may still be chargeable. Should any changes to applicable fees occur, we will make every effort to notify you promptly.

Referral Fee Disclosure

We seek your consent to receive commissions, referral fees, gratuities, or other benefits from:

		% of Total Invoice (£)	YES	NO
Contractors - Consent given		5	☐	☐
Insurance companies - Consent given		5	☐	☐
Referencing companies- Consent given		5	☐	☐
Utility providers and others - Consent given		5	☐	☐
EPC providers - Consent given		5	☐	☐

You are not under any obligation to use the services of any of the recommended providers, though should you accept our recommendation the provider is expected to pay us the corresponding Referral Fee. The Referral fee is separate from your obligation to pay our own fees or commission. Where applicable, commissions will be included in our contractor or supplier invoice.

Early Commencement of Service - Cancellation Rights and Liability

In accordance with the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013, you are entitled to a **14-day cancellation period**, beginning the day after you enter into a contract with us.

By signing below, you confirm that you **expressly request** The Agent to begin providing services **before the expiry of the 14-day statutory cancellation period**. You acknowledge that should you choose to cancel the contract **after commencement of service but within the cancellation period**, you may be held liable for any **reasonable costs** incurred up to the date of cancellation.

Please indicate your agreement by inserting your **initials** below:

I confirm my request for immediate commencement of service, including any Tailored Property Sourcing service, and accept liability for proportionate costs if I cancel within the statutory period:

Initials: _____

Date: _____

Name & Signed (Landlord): or FOR AND ON BEHALF OF ALL OWNERS of the Property (please specify Clearly:

NOTE: WHERE MORE THAN ONE PARTY IS STATED IN THIS AGREEMENT AS THE LANDLORD, THOSE PARTIES WILL BE JOINTLY AND SEVERALLY LIABLE FOR ALL OF THE LANDLORD'S OBLIGATIONS CONTAINED IN THIS AGREEMENT

LANDLORDS:

LANDLORD NAMES	SIGNATURE	DATE

AGENTS:

AGENT NAMES	SIGNATURE	DATE
		Tuesday, December 9, 2025
		Tuesday, December 9, 2025
		Tuesday, December 9, 2025

APPENDIX A

SCHEDULE 1 and 2 information

Information relating to distance, on and off-premises contracts

These terms only apply to consumers. If you are a business, these terms do not apply. The requirements of schedule 2, which are not applicable, have been removed.

(a) The levels of service available to the landlord can be found in Section 1 of this agreement.

(b) The trading name of the company is: **Pevona Ltd**

(c) The company can be contacted at:

Address: Flat 14, Burgundy House, 25 Liberty Bridge Road, London, E20 1AQ.

Telephone number: 0203 6329 485 - 07944228811

Email address: **admin-pev@pevonaltld.co.uk**

(d) and (e) We do not act on behalf of another trader

(f), (g), (h) and (j) **See attached "Scale of Charges"**

(k) **See attached "Complaints Procedure"**

(l) The information on the **right to cancel**, and how to cancel, can be found in **Appendix B** of this agreement.

(n) The costs involved with **invoking a right to cancel** can be found in **Appendix B**.

(q) We have ongoing after sales service available via our website (**currently under construction**) or through contact details listed in (c) above.

(r) We are a member of UK Association of Letting Agents (UKALA), and the relevant codes can be found here:

- ♦ **UKALA Code of Practice (Latest Version - 18 March 2023)** <https://www.ukala.org.uk/wp-content/uploads/2024/03/UKALA-Code-of-Practice-18-March-2023.pdf>
- ♦ **TPO Code of Practice (via UKALA)** <https://www.ukala.org.uk/cpd/tpo-code-of-practice/>

(s) The conditions for **terminating this contract** can be found in **5.1, 5.1.1, 5.1.2, 5.2** of the main agreement.

APPENDIX B

Right to Cancel

You have the right to cancel this contract within 14 days without giving any reason.

The cancellation period will expire 14 days after the day of the conclusion of the contract.

To exercise the right to cancel, you must inform us, [~insert agency name, geographical address (i.e., no PO Box) and, where available, your telephone number, fax number and email address] of your decision to cancel this contract by a clear statement (e.g., a letter sent by post, fax or email). You may use the attached model cancellation form, but it is not obligatory.

To meet the cancellation deadline, it is sufficient for you to send your communication concerning your exercise of the right to cancel before the cancellation period has expired.

Effects of cancellation

If a reimbursement is due, we will make the reimbursement without undue delay, and not later than 14 days after the day on which we are informed about your decision to cancel this contract.

If a reimbursement is due, we will make the reimbursement using the same means of payment as you used for the initial transaction, unless you have expressly agreed otherwise, in any event, you will not incur any fees as a result of the reimbursement.

If you request the performance of services during the cancellation period, you shall pay us an amount which is in proportion to what has been performed until you have communicated your cancellation from this contract, in comparison with the full coverage of the contract.

These rights apply to all services under this Agreement, including Tailored Property Sourcing (see clause 5.1A for specific terms).

Cancellation Form

To: Pevona Ltd

Flat 14, Burgundy House

25 Liberty Bridge Road

London, E20 1AQ

Tel: 0203 6329 485 | Email: admin-pev@pevonaltld.co.uk

I/We [**full names as listed above in on Landlord's details**] hereby give notice that I/We [**full names as listed above in on Landlord's details**] cancel my/our contract for the supply of the following service [Level of Service],

Start Date:

Name of consumer(s):

Address of consumer(s),

Signature of consumers(s): (only if this form is notified on paper):

Signature Date:

APPENDIX C (The Dispute Service Members only)

Section C:

Calendar Day or **day** means any day of the year, including Saturdays, Sundays, and bank holidays.

"Relevant Person" means person who paid the deposit or any part of it on behalf of a tenant.

"Stakeholder" means a person or body who holds the deposit at any time from the moment it has been paid by the tenant until its allocation has been agreed by the parties to the tenancy agreement, determined by the ADR process, or ordered by the court.

"Scheme" means an authorised tenancy deposit protection scheme (set up in accordance with the Housing Act 2004 and operated under a service concession agreement with the government) administered by The Dispute Service Limited.

"Statutory Time Limit" means the time limit set out in the Housing Act 2004 (as amended) in which the initial requirements of the Scheme must be met, and prescribed information must be provided to the Tenant and any Relevant Person.

"Working Day" means a day that is not a Saturday or Sunday, nor any day that is a bank holiday under the Banking and Financial Dealings Act 1971 or any customary or public holiday in England and Wales.

1 ASSURED SHORTHOLD TENANCY DEPOSITS

1.1: If a tenant pays a deposit in connection with an assured shorthold tenancy ("AST") the deposit must, from the moment it is received, be dealt with in accordance with a government-authorised tenancy deposit protection scheme.

1.2: The landlord must give the tenant and any Relevant Person 'prescribed information' about the deposit and comply with the initial requirements of an authorised scheme within the Statutory Time Limit.

1.3: We are a member **My Deposits (Custodial Scheme)** which is one of the **three government-approved tenancy deposit protection (TDP) schemes** in the UK, administered by:

Name: My Deposits is administered by HFIS plc, trading as Hamilton Fraser

Address: 1st Floor, Premiere House, Elstree Way, BOREHAMWOOD, WD6 1JH

Telephone: 0333 321 9401, **Email:** info@mydeposits.co.uk, **Fax:** 08456 343403

1.4: If we receive an AST deposit on your behalf, we will serve the prescribed information and comply with the initial requirements of the My Deposits on your behalf, unless you give us prior written instructions to the contrary before we receive the deposit.

1.5: If you do not want us to protect the deposit on your behalf, it will be your responsibility to protect it as required by law. A valid notice seeking possession under s21 of the Housing Act 1988 cannot be served on a tenant whose deposit is not protected. **A tenant or any Relevant Person may apply through the courts for compensation of at least the amount of the deposit, and up to three times the deposit**, if the landlord (or someone acting on the landlord's behalf):

- a) fails to give prescribed information within the Statutory Time Limit; or
- b) fails to comply with the initial requirements of an authorised scheme within the Statutory Time limit; or
- c) notifies the tenant or Relevant Person that the deposit has been protected in a scheme, but the tenant or Relevant Person cannot obtain the scheme's confirmation that the deposit is protected.

1.6: If you do not give us written instructions that you want to make your own arrangements for deposit protection; we will hold deposits relating to your properties under the terms of the MyDeposits. We must comply with the rules of the Scheme, and this means that we will not be able to act on your instructions with regard to the deposit if those instructions conflict with the Scheme rules.

1.7: The Scheme rules are available to view and download from <https://www.mydeposits.co.uk/content-hub/custodial-scheme-rules/>

You can access the official **MyDeposits Prescribed Information Template** using the link below: <https://www.mydeposits.co.uk/wp-content/uploads/2021/04/mydeposits-custodial-PI-template.pdf>

A very important point for you to bear in mind is that we must hold the deposit as "stakeholder". This means that we can only pay money from the deposit if:

- a) both landlord and tenant (and any Relevant Person) agree; or
- b) the court orders us to do so; or
- c) the MyDeposits directs us to do so.

2 DURING THE TENANCY

2.1: We will hold the deposit as stakeholder in our client account (separate from the money we use to run our business).

2.2: Interest earned on the deposit will belong to the person entitled to it under the tenancy agreement.

2.3: If the My Deposits directs us to send the deposit to them, we must do that within 10 days of receiving their direction. The Scheme will not normally direct us to send them the deposit unless there is a dispute about how it is to be paid at the end of the tenancy.

WHERE THERE IS NO DISPUTE ABOUT THE DEPOSIT AT THE END OF THE TENANCY

2.4: At the end of an AST, we will liaise with you to ascertain what (if any) deductions you propose to make from the deposit or have already agreed with the tenant. [We will help you to try and resolve any areas of dispute within a reasonable time obtaining quotations, estimates or arranging contractors on your behalf in accordance your instructions].

2.5: Once you and the tenant have agreed how the deposit should be allocated, we will ask you both to confirm your agreement in writing. We will then pay the deposit according to what you have agreed, within 10 days of receiving confirmation of agreement from you and the tenant(s). We cannot pay until we have the tenant's agreement. If you have joint tenants, all of them must agree.

3. WHERE THERE IS A DISPUTE ABOUT THE DEPOSIT AT THE END OF THE TENANCY

3.1: You must use reasonable efforts to reach a sensible resolution to the dispute as soon as practicable after the tenancy ends.

3.2: A tenant can ask us to repay the deposit at any time after the tenancy has ended. You must agree to us releasing promptly any part of the deposit that does not need to be held back to cover breaches of the tenancy agreement. We will take your instructions at the time regarding the amount to be withheld.

3.3: If the tenant asks us to repay some or all of the deposit, and we do not do so within 10 days from and including the date of the tenant's request, the tenant can notify the My Deposits. The Scheme will then direct us to pay the disputed amount to the Scheme. We have 10 days, from and including the date we receive the Scheme's direction, to send in the money.

3.4: If we protect a deposit with the Scheme on your behalf, **you hereby authorise us to pay to the Scheme as much of the deposit as the Scheme requires us to send.** We will contact you to keep you informed, but we will not need to seek your further authority to send the money to the Scheme.

3.5: The My Deposits will review the tenant's claim and decide whether it is suitable for independent alternative dispute resolution. Usually, this will take the form of adjudication, but it may involve assisted negotiation or mediation. "Alternative" in this context means an alternative to court proceedings. It is intended to be a faster and more cost-effective way of resolving disputes. The Scheme does not make a charge to landlords or tenants for using the alternative dispute resolution service if it relates to an AST.

3.6: If the tenant's claim is referred for alternative dispute resolution, we and you will be invited to accept or contest the claim. You must notify the Scheme whether you agree to submit the dispute for alternative dispute resolution within 10 Working Days from (but not including) the date of the Scheme's communication to you. **If you do not respond to the Scheme by the deadline, you will be treated as having given your consent to alternative dispute resolution.**

3.7: Agents and landlords are permitted to refer a dispute about a deposit to the My Deposits. If you or we refer a deposit dispute to the Scheme, the Scheme will contact the tenant to confirm whether the tenant will agree to alternative dispute resolution. If there are joint tenants, all the joint tenants must agree. A tenant who does not reply to the Scheme is NOT deemed to consent to alternative dispute resolution. **If the tenant (or all joint tenants) does not agree to alternative dispute resolution, and do not agree to the deposit deduction(s) you claim, you will need to begin court proceedings if you wish to pursue your claim.**

3.8: If the parties agree to adjudication, the adjudicator's decision is final and there is no right of appeal. Further information about adjudication is available free to download from <https://www.mydeposits.co.uk/wp-content/uploads/2021/04/mydeposits-custodial-PI-template.pdf>.

3.9: The My Deposits will pay the disputed amount to the person(s) entitled within 10 days beginning on the date the Scheme receives notice of (a) the adjudicator's decision or (b) an order from the court that has become final or (c) an agreement being reached between you and the tenant(s).

3.10: If you order any work to be done at the property before a dispute has been resolved, you do so at your own risk. There is no guarantee, if you incur expense, that a dispute will ultimately be resolved in your favour.

3.11: Tenant Acknowledgement – Deposit Holder You are hereby notified that the tenancy deposit for your property has been protected and managed directly by the landlord. The Agent is not the holder or administrator of the deposit and shall not be liable for any queries, disputes, or compliance actions relating to its protection. The Agent will, with best endeavors and upon written request from the landlord, assist with tenancy correspondence and dispute resolution support, provided sufficient deposit documentation is supplied.

4. CONSENT TO USE PERSONAL INFORMATION

4.1: When you agree to use our services, you agree that we may use information you give us, including information about yourself, for the purposes of performing our obligations to you.

4.2: You agree that we may supply such information as is reasonably required to the Scheme. You agree that the Scheme, or the government department responsible for the Scheme, may contact you from time to time to ask you to participate in surveys. If at any time you do not wish the Scheme to contact you for that purpose, you should write to the Scheme as explained in the Scheme Leaflet (see <https://www.mydeposits.co.uk/wp-content/uploads/2021/04/mydeposits-custodial-PI-template.pdf>).

5. OUR DUTY TO PROVIDE CORRECT AND COMPLETE INFORMATION

5.1: When you agree to use our services, you guarantee that all the information you provide to us is complete and correct to the best of your knowledge and belief. You agree to inform us immediately if it comes to your attention that any information was incorrect.

5.2: If we suffer any loss or incur any cost because information you have given us is or was incomplete and/or incorrect, you agree to pay us the amount necessary to put us in the position we would have been in if the information had been complete and correct. This clause does not relieve us of our own obligation to use reasonable skill and care in providing our services to you, or to take reasonable steps to keep our losses and costs to a minimum once we realise that there is a problem.

6 WHERE THE TENANCY IS NOT AN AST

6.1: The deposit does not have to be protected by law. However, the My Deposits will make its independent alternative dispute resolution service available to you as our client because we are a member of the Scheme.

6.2: If a dispute arises you, we or the tenant will contact the Scheme. Then:

- a) the Scheme will propose what they consider to be the most effective way of resolving the dispute (assisted negotiation, mediation, adjudication, or arbitration).
- b) you, we and the tenants must consent in writing to the proposed method if we all want to proceed (if we don't, the options are to negotiate or litigate).
- c) the parties will have to pay a fee of £500 + VAT (or such other minimum fee as the Scheme may set from time to time) or 10% of the deposit plus VAT, whichever is the larger amount.

6.3: The Scheme will not start the dispute resolution process until all parties have agreed in writing to use the Scheme and paid the applicable fee and the disputed deposit to the Scheme.

7. WHERE YOU INSTRUCT US THAT YOU DO NOT WANT US TO PROTECT AN AST DEPOSIT

7.1: If the deposit relates to an AST and you decide to hold the deposit yourself; you must tell us before the tenancy agreement is signed. We will notify you of the date we receive the deposit and aim to transfer the deposit to you within 5 days of receiving it. By law you must then register the deposit with an authorised tenancy deposit protection scheme within 30 days

of the date we received it. You must also give the tenant(s) and any Relevant Person 'prescribed information' about the deposit.

If you do not do both these things within 30 days of us receiving the deposit, the tenant or any Relevant Person can take legal action against you. The court can make an order stating that you must pay the deposit back to the tenant, or lodge it with the custodial scheme run by the Deposit Protection Service.

The court will then also order you to pay compensation to the tenant of between one and three times the amount of the deposit.

Where the landlord opts to protect the deposit independently, Clause 4.12a shall apply in full.

7.2: By law, you may not serve a notice seeking possession under section 21 of the Housing Act 1988 notice until you have served the prescribed information. If you have not complied with the initial requirements of an authorised tenancy deposit protection scheme, you cannot serve a s21 notice until you have returned the deposit (or the agreed balance of it) to the tenant or court proceedings relating to the return of the deposit have been disposed of.

7.3: If you instruct us that you do not want us to protect an AST deposit, we shall not be liable to you for any loss suffered or cost incurred if you fail to comply with your obligations to protect the deposit and give prescribed information. You must pay us for any loss or inconvenience suffered or cost incurred by us if you fail to comply with those obligations. This clause will not apply if the reason for your failure is because we failed to send you the deposit within 20 days of receiving it.

8 JOINT LANDLORDS

8.1: If there is more than one landlord, any of you will be able to participate in alternative dispute resolution. TDS does not accept liability to any one or more joint landlords for acting on the instructions of any other joint landlord. TDS does not accept directions from joint landlords to deal only with instructions agreed unanimously by joint landlords. If you want all decisions to be made jointly, this is something that should be agreed between the landlords. It will then be a matter for the landlords to resolve among themselves if one or more of them have not complied with that agreement.